In almost all cases, there is a financial angle involved. When the claim for payment as directed by the Court is sent to the Office of the CGDA, they start raising observations that delay the implementation of the Court order. The Court has given its ruling after going through all the relevant documentation and based on the merits of the case. What then is the point of asking for further clarifications from the Service HQ? Take the recent case (May 2023), involving the Principal Integrated Financial Adviser (PIFA) of the MoD, who unilaterally challenged the Court ruling and refused to release the pensionary benefits due to soldiers. The Court not only summoned the PIFA (M) but also the Army officer dealing with the case, who clearly was not at fault.[5] This often gives rise to the perception that the Army is fighting against its own personnel. Nothing can be further from the truth. In this regard, the Committee of Experts report of 2015 highlighted the following:[6]

(a) **Default reaction is 'To appeal'.** The first reaction to any case decided in favour of any service personnel, especially by the AFTs is to file an appeal.
(b) **Perception that 'Government Policy' is Sacrosanct**. There is a wrong perception among some officers that 'Government Policy' is so sacred that whenever a Court takes a decision against 'policy', it has to be appealed against.
(c) **Litigant is perceived as Acting against the Interests of the State.** There is a tendency to ostracize litigants and they are perceived as acting against the interests of the State.
(d) **Pressure to 'win cases' and incidence of ego-fuelled litigation**. The first and foremost duty of an officer dealing with litigation or even of a counsel in a Court is to assist the Court in arriving at justice rather than to 'win cases' by getting personally involved with briefs.

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